Revision Date:
04/01/2018

Background:
The State Program Disability Determination Service Division (DDSD) is responsible for evaluating medical and employment data to determine if an applicant/beneficiary meets the federal definition of disability. This section is being updated to include Affordable Care Act (ACA) changes issued in SN 13-09A.

Disability is defined as the "inability to engage in any substantial gainful activity (SGA) by reason of a medically determinable physical or mental impairment which can be expected to result in death or has lasted or can be expected to last for a continuous period of not less than twelve months". Refer to MPG 05.04.03 for details on SGA.

Note: DDSD does not determine incapacity for AFDC linkage nor verify pregnancy or social security numbers.

Purpose:
This section provides criteria for processing disability referrals.

Policy:
Applicants/beneficiaries who cannot be determined Medi-Cal eligible under Modified Adjusted Gross Income (MAGI) and claim a disability can continue their Medi-Cal application process by completing a DDSD referral.

05.04.01A When to Refer to DDSD
The disability referral process to DDSD is used only when:

- The disability cannot be confirmed by the methods detailed in MPG 05.03
- The applicant/beneficiary application for SSI is denied for excess income/resource and individual has proof
- The applicant/beneficiary has been denied SSA within the last 12 months and has reapplied with SSA
- Applicant was receiving SSI/SSP and was discontinued for a reason other than termination of disability and does not currently receive Social Security Title II disability benefits
- SSA refuses to accept a reopening request and individual has proof
- Applicant/beneficiary was denied benefits for failure to cooperate with DDSD and good cause is established

DDSD is only authorized to perform medical needy evaluations on individuals applying for Medi-Cal.

10 Day Rule
The completed Medi-Cal Supplemental Statement of Facts (MC 223 or MC 223C) and applicant's information must be entered into CalWIN prior to submitting a DDSD referral. All referrals must be submitted to DDSD within 10 calendar days from the date:

- The completed Medi-Cal application is received by the county, or
- The beneficiary claims to be disabled, whichever is later

Exceptions to the 10 Day Rule

- Circumstances beyond the worker's control cause a delay in submitting the referral. The reasons for the delay must be documented in case comments. Do not hold the referral pending evaluation or verifications (i.e. property issues) of other non-disability factors. If the individual is later found to be ineligible, send form MC 222 DDSD Pending Information Update to DDSD.
- The applicant/beneficiary has a pending SSI or Social Security Title II application and 80 days have passed since the Medi-Cal only application date.

05.04.01B How to Identify a DDSD Referral

Indications of disability for an applicant/beneficiary include the following:

- Answer "yes" to the disability question on the Medi-Cal application, or
- Makes a written or oral statement to the worker which alleges disability
- SSI/SSP is pending on MEDS (INQX screen) with a H80 payment status

Form MC 017, "What You Should Know About Your Medi-Cal Disability Application" will be given to individuals who wish to pursue a Medi-Cal application based on disability. This informational form gives the individual an overview of what can be expected when an application based on disability is filed.

05.04.01C Appropriate Referrals

The purpose of a disability evaluation is to establish linkage to the Non-MAGI program. The following applicants/beneficiaries are referred to DDSD:

- Persons age 18 or older who meet the definition of "federally disabled"
- Child who appears or alleges to be disabled
- Any other person who is potentially disabled or claims to be disabled
- Disabled person whose condition the worker believes has improved or the person reports an improvement
- A disabled person who becomes employed (in paid, unpaid, or volunteer work)
- A disabled person who has a break in Medi-Cal benefits for 12 or more months for any reason other than termination of disability
- Disabled person under age 65 who does not receive Title II disability benefits and has been discontinued from SSI/SSP for reasons other than termination of disability even though there was no SSA re-examination date
- Person receiving County Medical Services (CMS) who requests a disability based Medi-Cal evaluation. Ask the applicant if he/she received CMS services in any of the three retroactive months and include those on the DDSD transmittal form MC 221.
- Person who was denied Title II (SSA) or Title XVI (SSI) disability status within 12 months from the SAWS date and:
    - Claims a new medical condition not considered by SSA
    - More than 60 days from the SAWS 1 date, claims the same medical condition has worsened or a new medical condition not considered by SSA

  Note: The applicant must be referred to SSA
- Applicant who claims to be disabled is working and engaged in SGA

Note: Tactfully discuss a disability referral with an applicant/beneficiary who does not specifically meet the criteria for referral listed above, but who could be disabled. It is to the individual's benefit to be evaluated for disability because ABD individuals are eligible to larger income deductions.

05.04.01D Inappropriate Referrals

A disability evaluation referral is inappropriate and the applicant/beneficiary will not be referred for a disability evaluation when the:

- Person, within the last 90 days, has had a DDSD determination and was found not disabled or no longer disabled, unless he/she alleges his/her condition has deteriorated, presents new medical evidence, or claims a new physical/mental condition exists
- Applicant was determined disabled under the Non-MAGI program within the last 12 months, unless the re-examination date has passed or the applicant indicates their condition has improved
- Person is already classified as aged or disabled unless a blindness evaluation for Pickle eligibility is required
- Person does not meet other eligibility factors, such as California residency or property limits
- Person who was denied disability status by SSA:
    - Within the previous 60 days and did not request that SSA reconsider their claim
    - After 60 days but within one year of current date and individual did not request that SSA reopen their claim
    - After 60 days but within one year of current date and individuals condition has changed or worsened and did not reapply with SSA
    - SSA denied the disability claim after reopening the previous decision
    - After 60 days from application date and does not claim the same medical condition has worsened or a new medical condition, or
    - Any time they have appealed the SSA denial and the decision is pending

05.04.01E Disability Packet Received from Applicant/Beneficiary

All Medi-Cal applicants requiring a disability evaluation must have their SSA status verified to determine if the applicant has had a disability determination adjudicated or has a pending application with SSA.

SSA evaluates disability claims in the order that will be most beneficial to the applicant.

1. Title II SSA disability
2. SSA early retirement (applicant over 62 years of age)
3. Title XVI SSI

Note: If SSA denied the disability claim after reopening the previous decision, the SSA decision would supersede DDSD's determination. Deny the Medi-Cal application if no other linkage is established.

05.04.01F Tracking DDSD Referrals

Each FRC maintains the pending cases and is responsible for the granting/denial action once a decision is received from DDSD.

The state mandates that counties track DDSD referrals. Utilize the DDSD Management Report to monitor and track DDSD referrals. The report is uploaded to SharePoint weekly.

Procedure:
Refer to Processing Guide #26 for steps to follow when a completed disability packet is returned to the county.

Program Impact/s:
Automation: Ensure that all CalWIN fields in the Display Disability/Medical Condition Summary and the Collect Special Indicator Detail windows are completed during each step of the DDSD referral process.

References:
ACWDLs 00-16, 11-11, 12-02, 12-17,
MEM Proc. 22C, 22C-1, 22C-7
MEDIL 17-22
County Policy

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:

4-24-18

Rick Wanne, Director
Eligibility Operations

Pending Disability Determination Aid Codes	Number	Page
	05.04.02	1 of 2

Revision Date:
04/01/2018

Background:
When a Medi-Cal beneficiary alleging a disability is not currently considered disabled and other linkage no longer exists, the individual alleging the disability may receive Medi-Cal benefits under a Pending Disability Determination aid code until a disability determination is made. This does not apply to beneficiaries who are discontinued from aid code 53. This section is being updated to the new format, no other changes have been made.

Purpose:
This section provides policy for Medi-Cal evaluations when there is a pending disability determination aid code.

Policy:
05.04.02A Pending Beneficiaries Aid Codes
If the individual meets the criteria, initiate a DDSD referral and place the individual in the appropriate pending disability aid code:

Aid Code	Description
6J	Full Scope – Zero SOC
6R	Full Scope - SOC
5J	Restricted Scope – Zero SOC
5R	Restricted Scope – SOC

Note: The above aid codes will not be used when the beneficiary is eligible under another Medi-Cal aid code or reports a disability more than 30 days after the discontinuance for loss of linkage.

05.04.02B CalWORKs Recipient Discontinued
When a recipient is discontinued from CalWORKs, CalWIN will automatically convert to the appropriate Medi-Cal aid code based on previous entries. If no Medi-Cal eligibility is found and the individual alleges a disability, obtain the individual's written statement of disability and completed DDSD packet. Submit the completed DDSD packet within 10 days of receipt as outlined in MPG 05.04.01 and place the recipient in the appropriate pending disability aid code.

Procedure:
05.04.02C Discontinued from Aid Code 53
Beneficiaries discontinued from aid code 53 must be processed as follows:

If aid code 53 beneficiary is…	Then…
alleging a disability	app/reg a new Medi-Cal application and hold in pending status
not alleging a disability	no further action is required, case remains closed

Program Impacts:
None

References:
ACWDLs 02-40,

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
04/01/2018

Background:
To be considered disabled, an individual must be unable to engage in SGA due to a physical or mental impairment, which is expected to result in death or last for a continuous 12-month period. This section is being updated to the new format, no other changes have been made.

Purpose:
This section provides guidelines for processing SGA determinations.

Policy:
05.04.03A SGA Determination
An SGA determination will be made when an applicant/beneficiary applies for Medi-Cal disability and:

- States on form MC 223 or MC 223C, Supplemental Statement of Facts, that he/she is working and has gross earnings of more than the current monthly SGA limit. Refer to MPG 11.01 for SGA limits
- Meets the criteria for pending disability and has gross earnings of more than the current monthly SGA limit. Pending disability will not be approved until an SGA determination is made

Note: These procedures do not apply to individuals who are blind and return to work after disability has been approved, or who meet the eligibility requirements for the 250% Working Disable (WD) Program. Applicants who are denied SSA disability based on the capacity to perform SGA and who are otherwise eligible for the 250% WD Program will be referred to DDSD for a disability evaluation. If an SGA evaluation was not performed because the person alleged blindness and DDSD found that the person was disabled but not blind, an SGA evaluation must be performed before eligibility as a disabled person can be established.

When the individual is subsequently found to be engaging in SGA, send form MC 222 and a copy of the MC 272 to the State DDSD.

05.04.03B Subsidies
A subsidy is support an impaired worker receives to include one of the following:

- More pay than the actual value of the service performed
- Same pay but more supervision
- Fewer/simpler tasks than other non-impaired workers
- Results in more pay than the actual work is worth

Individuals in sheltered workshops or settings are generally subsidized.

Subsidies will be verified by obtaining a statement from the employer or evidence from the employer confirming that a subsidy exists and the value of the subsidy.

The subsidy amount is deducted from gross earnings to determine the “net counted earnings” for SGA eligibility. Subsidies are not considered earned income exemptions when computing budget determinations.

Example: Employer states that the value of work is half the actual earnings. The individual earns $800 per month. Because half the work is subsidized, $400 is considered the real value of the work and the individual is not engaging in SGA.

Note: $800 is the non-exempt income use in determining the individual's SOC.

05.04.03C Special Work Considerations

If a beneficiary is forced to stop working after a short time due to impairment, the work is generally considered an Unsuccessful Work Attempt (UWA) and the earnings from that work will not be used to determine SGA. See Desk Aid 85 for UWA examples.

All of the following must be present for work to be considered UWA:

- There is a break in the individual's employment of 30 days or more
- Work lasted less than six months
- Worked stopped due to the individual's impairment

Procedure:

05.04.03D Determining SGA

Follow the steps below when determining SGA:

Step	Action
1	Obtain verification of the individuals monthly gross earnings and Impairment Related Work Expenses (IRWE)
2	In CalWIN, complete the Collect Case Individual Detail Screens, Other Information tab: • Individual choice about 250% WD, check "yes" and • Declines to be evaluated for the A&D FPL program check "yes"
3	**If…** / **Then…** net countable earnings are greater than current monthly SGA limit → evaluate for the 250% WD program applicant is ineligible to the 250% WD program, has no other linkage and is engaging in SGA → deny the application based on disability net countable earnings are equal to or less than the current monthly SGA limit → • notate on item 10 on the MC 221 "evaluated and is not engaged in SGA" • complete MC 272 SGA worksheet • submit the MC 272 with the completed DDSD packet to DHCS for disability evaluation • complete the Display Disability-Medical Conditions Summary screens in CalWIN • image forms in to case file • enter case comments

Program Impacts:
None

References:
ACWDLs 00-16, 02-47, 12-02
MEM Proc 22C-2, 22C-12

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Limited DDSD Referrals	Number	Page
	05.04.04	1 of 2

Revision Date:
04/01/2018

Background:
A limited DDSD referral packet is required for persons under 65 years of age who were discontinued from SSI/SSP for reasons other than termination of disability and who are not currently receiving Title II SSA disability benefits. Included with the reformatting, the DDSD forms listed in this section have been added to MPG 05.04.06 for efficiency.

Purpose:
This section provides guidelines for processing limited DDSD referral packets.

Policy:
05.04.04A Limited DDSD Referrals
Take all necessary steps to determine the reason the applicant was discontinued from SSI/SSP using the information obtained from SSA, MEDS or IEVS, and document the information in case comments.

SSI/SSP Record of Disability
The SSI/SSP record of disability is maintained for 12 months. After the 12 months have lapsed, SSA will show that the beneficiary is not disabled. While eligibility may be granted when verification of disability status with SSA is obtained, ongoing disability status must be established by DDSD prior to the end of the 12-month record retention period.

Disability Redeterminations
All disability redeterminations will require a limited referral packet unless one of the three conditions exist:
1 It has been more than 12 months since the applicant was discontinued from Medi-Cal
2 The re-exam is due, past due or unknown
3 The applicant's condition has improved

Note: A limited referral packet will be used for deceased applicants. The MC 223 or MC 223C and documentation of death must be included (e.g. death certificate, hospital records, etc.).

Disability Re-evaluations
A limited referral packet may be sent for re-exam determinations only when:
1 The packet is sent within 30 days of DDSD's decision
2 An earlier onset date on an approved case is needed
3 No new disabling factors are alleged, or
4 No new treatment sources are alleged

Incomplete or Inaccurate Packet
When a packet is returned to the County as an incomplete or inaccurate packet and the packet is re-submitted to DDSD within 30 days of DDSD decision, a copy of the DDSD determination must accompany the re-evaluation request. All other re-exams require a complete packet.

When DDSD is unable to adopt the federal disability determination, or SSA has not made a disability determination, the limited referral will be returned and a complete referral packet will be requested.

05.04.04B Forms needed for a Limited Referral Packet
Refer to MPG 05.04.06 for titles and descriptions of forms used to complete a DDSD referral.

05.04.04C Submitting a Limited Referral Packet
Send the completed limited referral packet to DDSD no later than 10 calendar days from the date the:

- Beneficiary claims to be disabled, or
- Completed MC 223 or MC 223C, Supplemental Statement of Facts, is received by the County

Forward the completed packet via U.S. mail to:
State of California Health and Human Services Agency
Disability Determination Services Division
LA State Programs Branch
P.O. Box 992
El Segundo, CA 90245

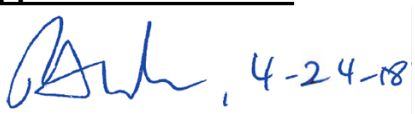
Procedure:
N/A

Program Impacts:
None

References:
ACWDLs 02-47, 05-14, 12-02
MEPM C22-3

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
04/01/2018

Background:
Complete a DDSD referral packet for Medi-Cal applicants/beneficiaries 21 through 64 years of age who are potentially disabled or allege a disability and request to be evaluated for disability status. Included with the reformatting, the DDSD forms listed in this section have been added to MPG 05.04.06 for efficiency.

Purpose:
This section provides guidelines for processing a DDSD referral packet.

Policy:
05.04.05A DDSD Referrals

A DDSD referral packet is submitted to DHCS for:

1 Medi-Cal beneficiary 21 through 64 who is potentially disabled
2 Medi-Cal applicant/beneficiary who is eligible under another program and alleges disability and wants to be evaluated for disability status
3 Applicant with a Title II or SSI/SSP disability determination pending (including blindness)
4 Person determined presumptively disabled. See MPG 05.03
5 Person meeting the urgent presumptively disabled criteria. See MPG 05.03

05.04.05B Forms needed for a DDSD Referral
Refer to MPG 05.04.06 for titles and descriptions of forms used to complete a DDSD referral

Note: DHCS DDSD will accept the original completed DDSD packet or a printed copy form CERMS.

05.04.05C Submitting a Complete DDSD Referral
Send the completed referral packet to DDSD no later than 10 calendar days from the date the:

- Completed MC 223 or MC 223C, Supplemental Statement of Facts, is received by the County, or
- Beneficiary claims to be disabled, whichever is later

Forward the completed packet via U.S. mail to:
State of California Health and Human Services Agency
Disability Determination Services Division
LA State Programs Branch
P.O. Box 992
El Segundo, CA 90245

05.04.05D DDSD Status Letter
A status letter, form MC 179 must be sent to each applicant whose referral packet has not been submitted to DDSD by the 80th day from the date of the SAWS date for new applicants. Referral packets submitted to DDSD after the 80th day must include a copy of the MC 179 and must indicate on form MC 221, Section 10, that the MC 179 has been submitted.

If a referral packet is received by DDSD on or after the 86th day without a copy of form MC 179, DDSD will send a letter stating that the MC 179 is missing. The requirement is to immediately send the client an MC 179 and forward a copy to DDSD. Referral packets returned by DDSD for missing or incomplete information and received back by DDSD after the 85th day must also include a copy of the MC 179 and check the box in section 10 of the MC 221 that the MC 179 has been submitted.

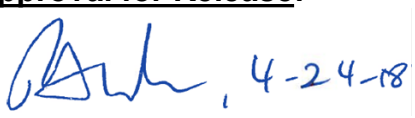
Procedure:
N/A

Program Impacts:
None

References:
ACWDLs 97-01, 03-32, 12-02
MEM Proc 22C-3, 8

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Necessary Forms to Complete DDSD Referral Packets	Number	Page
	05.04.06	1 of 2

Revision Date:
04/01/2018

Background:
Included with the reformatting of this section, all DDSD forms and completion instructions have been combined into Desk Aid 86 for efficiency.

Purpose:
This section provides guidelines for forms used when processing a DDSD referral packet.

Policy:
05.04.06A
Follow the instructions for the completion of each form as specified in Desk Aid 86.

05.04.06B DDSD Forms

MC 220 Authorization for Release of Information
MC 221 LA Disability Determination and Transmittal
MC 222 LA DDSD Pending Information Update
MC 223 Applicant's Supplemental Statement of Facts for Medi-Cal
MC 223C Supplemental Statement of Facts for Medi-Cal Child Applicant Only - Under Age 18

Note: DDSD will not accept forms that have been edited with white out.

MC 223/MC 223C may be completed by one of three methods at applicant/applicant's parent request:
- Through the mail
- During a face-to-face interview
- During a telephone interview with applicant/applicant's parent (worker completes form MC 223C and mails the form to be signed, dated, and returned)

Refer to Medi-Cal Desk Aid #26 MC 223 Essential Entries to ensure that all questions are answered.

05.04.06C Other Forms Required for DDSD Referrals

14-90 HHSA RRR for Cases Pending Over One Year
14-91 HHSA No Determination Contact Form
14-92 HHSA No Determination Coversheet
14-93 HHSA Transfer of DDSD Decision
14-94 HHSA Appeals Rescinding Notice
14-95 HHSA Fax DDSD
14-96 HHSA DDSD Weekly Activity Log
14-97 HHSA DDSD Monthly Activity Log
MC Information Notice 013 Important Information Regarding Your Appeal Rights

Procedure:
Refer to Desk Aid 86 located in Eligibility Essentials for instructions on completing these forms.

Program Impacts:
None

References:
ACWDLs 00-46, 02-40, 02-47, 03-32, 12-02, 14-06, 14-27

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:

4-24-18

Rick Wanne, Director
Eligibility Operation

Medi-Cal Eligible Pending DDSD Evaluation	Number	Page
	05.04.07	1 of 2

Revision Date:
04/01/2018

Background:
An applicant with a pending disability evaluation, who has linkage to MAGI or Non-MAGI Medi-Cal, is granted using the appropriate aid code. This section is being updated to the new format, no other changes have been made.

Purpose:
This section provides guidelines for processing an applicant with Medi-Cal eligibility when the DDSD referral packet is pending a disability evaluation and decision.

Policy:
05.04.07A Eligibility Requirements Pending DDSD Evaluation
When an applicant is eligible to Medi-Cal and has a pending disability determination, the individual is granted Medi-Cal under the appropriate aid code. Case comments are completed stating when the DDSD packet was sent.

When a beneficiary alleging disability is receiving Medi-Cal under a Pending Disability Determination aid code, he/she is not eligible to the ABD income deductions.

The beneficiary must continue to meet all other Medi-Cal eligibility requirements while the DDSD is pending.

When an applicant does not have linkage to Medi-Cal, refer him/her to CMS.

Procedure:
05.04.07B Communication with DDSD
Notify DDSD of any changes in the applicant's status while DDSD is in the process of making a disability determination.

Send the MC 222 immediately when any of the following occur:

1. SSA decision has been made. A copy of the SSA document regarding benefits; or the SSA denial letter and personalized denial notice will be attached to the MC 222.
2. Change in the applicant's address
3. Change of applicant's name or telephone number, including message number. If the applicant moves out of state, indicate that the disability evaluation is still needed through the month the applicant moved out of state and keep case in pending status.
4. Denial or discontinuances of the applicant on the basis of nonmedical information, i.e., excess property, etc.
5. Withdrawal of the application.
6. Cancellation of the Authorization for Release of Information by the applicant.
7. The death of the applicant. Attach a copy of the death certificate, death notes or death

summary

8 Receipt of new medical evidence

9 Availability of interpreter (provide name and telephone number).

10 Receipt of a new authorized representative form, or report of change of an AR.

11 Applicant becomes incarcerated (include date of incarceration name, address and telephone number of facility. Indicate that the disability evaluation is still needed for the months beginning with any retroactive months through the month of incarceration. The case must remain in pending status while the DDSD evaluation is completed.

12 Any other information which may affect DDSD's action on the pending case.

Program Impacts:
None

References:
ACWDL 02-40
MEM Proc 22C-3
County Policy

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operation

Revision Date:
04/01/2018

Background:
When a DDSD evaluation response is received by the county, prompt action is taken on the case to ensure accurate processing of the disability decision. This section is being updated to the new format, no other changes have been made.

Purpose:
This section provides guidelines for processing DDSD evaluation responses.

Policy:
05.04.08A Receipt of DDSD Responses
All DDSD responses must be processed within **FIVE** days of receipt.

- DPC is responsible for:
  - Capture imaging Disability Decisions received from DDSD
  - Validating the Disability Decision as NFM SP2 DDSD 221R
  - Forwarding Disability Decision Hardcopies to CMS Recovery at MS W414 within three business days
- FRC staff is responsible for:
  - Reviewing the Daily DPC Report (DDSD tab)
  - Assigning the Disability Decision imaged to appropriate task for processing
  - Ensuring accurate processing of a disability decision within **two** business days

05.04.08B Disability Not Approved
The DDSD analyst returns the MC 221 with the disability determination attached explaining the basis of their determination when the applicant does **not** meet the disability criteria based on DDSD's vocational and medical evaluation.

The DDSD analyst attaches a notice explaining the basis for their determination (See DDSD Report Codes Desk Aid #22). If the DDSD rationale notice does **not** explain the basis for the determination, request the information from DDSD.

1. Presumptive Disability (PD)

If PD has…	And	Then…
been granted,	DDSD subsequently adopts SSA's disability denial and the beneficiary files an appeal with SSA,	benefits will continue through the appeal process. **Note**: DDSD will indicate code "Z53 on the MC 221 if SSA's denial is adopted.
not been granted or the PD individual has not requested SSA's denial,	N/A	evaluate eligibility under any other Medi-Cal linkage

2. Only Medi-Cal Linkage is Disability
   If disability is the applicant's **only** linkage to Medi-Cal:
   - Deny or discontinue the case
   - Attach the DDSD rationale which explains the basis of the determination to the denial or discontinuance NOA and mail it to the applicant (**Do not send a copy of the form MC 221 to the applicant**)
   - Send form 14-10 HHSA to notify the hospital of the Medi-Cal denial if the applicant was certified CMS pending the disability evaluation
   - Enter denial information into case comments
   - Enter the DDSD determination in Display Disability/Medical Conditions Summary screens in CalWIN

05.04.08C Disability Approved

The DDSD analyst attaches the disability decision to the MC 221. The applicant will be considered disabled under the Non-MAGI criteria, see Processing Guide 26 for the steps to take when a disability decision is received. The onset date provided will take into consideration any request for up to three months retroactive coverage prior to the date of application as long as retro onset is requested on form MC 221. Refer to MPG 04.15 for guidelines on annual redetermination for DDSD cases.

05.04.08D DDSD Adopts SSA Allowance

When the applicant applies for SSA benefits, SSA evaluates the applicant's disability before evaluating for any other eligibility factors. If the SSI/SSP application is denied because the applicant does not meet the federal disability criteria, DDSD will "adopt" the SSA's determination.

If SSA has determined the applicant is **not** disabled, the DDSD analyst returns form MC 221 with an attachment indicating the applicant is **not** disabled per SSA. Deny the application following procedures outlined in 05.04.08B above.

If SSA has determined the applicant **is** disabled, the DDSD analyst returns form MC 221 with an attachment indicating the applicant **is** disabled per SSA and will give the onset date. Approve the application following procedures outlined in 05.04.08C above.

A disability determination does not mean the applicant is receiving or will receive SSI/SSP benefits. After SSA determines disability, SSA reviews for other eligibility factors. This review may take several months and the applicant may be determined ineligible to SSI/SSP.

If the DDSD decision indicates that DDSD adopted a SSA allowance and the applicant is not currently receiving SSA Disability benefits, check MEDS to determine whether the disability continues. When MEDS indicates that the applicant is no longer disabled, then complete form MC 221 and submit it to DDSD for a re-exam. Benefits shall not be discontinued unless a DDSD decision is received indicating that the beneficiary ceases to be disabled.

05.04.08E DDSD Disability Cannot be Determined
The DDSD analyst may return form MC 221 indicating that s/he was unable to make a determination. The analyst will state the reason(s) for the no determination on the MC221 and will often request help in locating the applicant or in obtaining the applicant's cooperation in attending a consultative exam.

Note: DDSD can medically defer a case referral for up to three months when future evidence is needed to assess duration and severity of impairment. Medical deferment is an exception to the rule. Common reasons are strokes or heart surgery. Unless you receive form MC 221 requesting your help, there is no action required.

Procedures:
05.04.08F SSI/SSP Benefits Granted
See Processing Guide 26 for steps when an applicant/beneficiary is granted SSI/SSP benefits.

05.04.08G No Determination Decision Received
See Processing Guide 26 for steps when a no Determination Decision is received and DDSD is requesting the county's help.

Program Impacts:
None

References:
ACWDL 00-46, 11-23
MEDIL 17-22
MEM Proc 22C-9.2
County Policy

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:
4-24-18
Rick Wanne, Director
Eligibility Operations

Retroactive Applications	Number	Page
	05.04.09	1 of 2

Revision Date:
04/01/2018

Background:
Retroactive Medi-Cal cannot be granted for disabled or disabled pending applicants until the onset date of disability is determined. This section is being updated to the new format, no other changes have been made.

Purpose:
This section provides guidelines for processing Retroactive DDSD requests.

Policy:
05.04.09A Retroactive Requests
Retroactive Medi-Cal can only be granted back to the onset date or 3 three months prior to the application date, whichever is less.

Procedures:
05.04.09B Applicant with Acceptable Disability Verifications
When an applicant with acceptable verification of disability requests retroactive Medi-Cal and verification of the onset date of disability is not available, complete form MC 221:

- Indicate in section 6, 8 and 10 that the applicant is currently disabled and that an earlier onset date of disability is being requested
- forward the form to DDSD to obtain the date of the onset of disability prior to granting retroactive Medi-Cal.

05.04.09C Applicant with Pending Disability Verifications
When an application is processed as disability pending, retroactive Medi-Cal cannot be granted until the disability evaluation is received back from DDSD. DDSD will indicate the onset date of disability on form NFM SP2 DDSD 221R.

To obtain disability onset dates for SSI/SSP disabled or blind recipients who request three-month retroactive Medi-Cal:

- check MEDS INQX to obtain the SSA onset date, or
- submit form 07-94 to SSA

If the onset date provided by SSA is later then the month(s) of request for retroactive coverage, complete a referral to DDSD for the retroactive months.

05.04.09D Re-application by Non-cooperative Persons
When an applicant has been denied Medi-Cal for non-cooperation and later reapplies for retroactive coverage for the denial month, retroactive Medi-Cal cannot be granted even if he/she agrees to cooperate with the disability referral process.

Regulations prohibit retroactive coverage for a month in which the applicant has been denied for non-cooperation unless the applicant can show that good cause exists.

When an applicant withdraws the application and later files a new application, then continuing and retroactive eligibility is to be determined based on the information provided on the new SOF as long as that information is reconciled with any information previously provided by the applicant.

Program Impacts:
None

References:
ACWDL 09-28
MEM 50710

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:

4-24-18

Rick Wanne, Director
Eligibility Operations

Revision Date:
04/01/2018

Background:
Re-examinations (re-exams) are based on the mandatory date when a beneficiary's medical condition is expected to improve. The re-exam date is given by DDSD with their disability evaluation. This section is being modified to include information from MEDIL 17-22 issued 11/30/2017 and updated to the new format.

Purpose:
This section provides guidelines for processing DDSD cases with a mandatory re-examination date.

Policy:
05.04.10A Re-examinations
The beneficiary will continue to be considered disabled until his/her medical condition improves and DDSD has determined the individual is no longer disabled except when the individual refuses to cooperate during the re-exam. DDSD tracks and provides a disability re-examination case list to the county on a monthly basis.

Complete a re-examination when one of the following situations occurs:
- DDSD set re-exam date is due
- DDSD notifies the county that a medical re-exam is due (monthly disability re-examination case list)
- Worker observes or receives information that the beneficiary's medical condition may have improved

When DDSD approves the disability determination on an initial case that has HIV involvement, DDSD will notate on NFM SP2 DDSD 221R that the case will be exempt from the re-exam process until further notice. Identify these cases and enter in case comments that no DDSD re-exam is required.

Note: A disability packet is not required if a subsequent SSA determination has found the beneficiary to be disabled and has awarded Title II disability benefits. The federal disability determination is controlling. The beneficiary will continue to receive benefits as a disabled individual as long as the Title II disability benefits are received.

05.04.10B CalWIN Case Alert
CalWIN will generate a case alert when the re-exam date is due. Submit a re-examination referral to DDSD. See Processing Guide 26 for procedures.

When the beneficiary does not respond or refuses to cooperate with the re-examination, determine whether the individual is eligible for Medi-Cal under a different linkage factor.

If the beneficiary…	**Then…**
is eligible under a different linkage	grant the case using the appropriate aid code and linkage factor

is not eligible under different linkage	• Take necessary actions to discontinue the case giving timely notice • Complete MC 222 section 9, "Client discontinued for failure to cooperate with Disability Re-examination" • Submit MC 222 to DDSD and image into case record
cooperates	continue Medi-Cal eligibility until DDSD completes the re-evaluation

05.04.10C Request for Re-evaluations

When there is a disagreement with the decision rendered by DDSD or the evaluation results are believed to be correct, a new evaluation of disability may be requested within 90 days of the DDSD decision.

Request for re-evaluation should not be made unless there is reason to believe that one of the following circumstances exists:

1	DDSD has performed an independent disability evaluation and denied the claim. The applicant states: • Their condition has deteriorated since the DDSD denial • New medical evidence not considered by DDSD is available or • A new physical and/or mental impairment not previously reported now exists
2	DDSD was unaware of certain medical evidence, conditions, or recent occurrences which could change the outcome of the decision.
3	DDSD adopted a SSA denial and the applicant has a totally new physical or mental condition which is believed would make the SSA decision obsolete.
4	DDSD adopted SSA's denial and within 12 months of the denial the applicant: • Claims a worsening of the same condition, which was evaluated by SSA. • Has obtained new medical evidence regarding the same condition that SSA did not consider in its previous evaluation.

If…	Then the applicant…
within the previous 60 days of SSA's denial	will be instructed to file an appeal with SSA
more than 60 days	must file a new application with SSA

If either situation occurs or the applicant has not reapplied, a new DDSD packet will be required.

05.04.10D Redetermination of Disability Status

A redetermination of a person's disability status will be requested for an applicant who meets the following criteria.

A limited DDSD referral packet will be sent when the applicant:	
1	Was previously determined disabled by DDSD
2	Was discontinued for a reason other than the disability.
3	Reapplies for Medi-Cal alleging that the same disability continues to exist.

A Complete DDSD referral packet will be sent when:	
1	Reapplication date is more than 12 months since the person was discontinued from Medi-Cal.
2	No re-exam date was set on the previous MC 221.
3	Re-exam date is unknown, due or past due.
4	An improvement in the person's condition is noticed.

Note: A copy of the prior MC 221 must be included with both the limited and the complete DDSD packets. Check the redetermination box on the MC 221 and provide an explanation in the comments section. Unless other linkage exists, the case will be placed in pending status and Medi-Cal benefits will not be granted until DDSD returns the redetermination.

DDSD will check with SSA to determine if there has been a subsequent federal determination within the past 12 months. If there has been a federal denial/cessation of benefits, DDSD will adopt the SSA decision and the person will be referred back to SSA. The Medi-Cal application will be denied.

05.04.10E Disability is Determined by SSA

When DDSD initially determined the individual disabled, a subsequent SSA Title II disability claim is allowed, and a re-exam is due, DDSD will adopt the federal re-exam date as long as it is set at a future date or it is not pending. DDSD will advise that the federal case takes precedence and SSA's determination will be used to establish disability linkage.

If DDSD initially determined the individual disabled, a subsequent SSA Title II disability claim is pending, and a re-exam is due, DDSD will adopt the results of the federal re-exam and advise the county to verify disability status with SSA in 60 to 90 days. Submit form MC 194, to SSA, 60 days after the re-examination date to request re-verification of disability. Medi-Cal benefits will continue while the federal re-exam is pending.

Procedures:

05.04.10F Federal Appeal Rights Exhausted

When the beneficiary has exhausted all federal appeal rights twelve or more months prior to the DDSD re-exam date and the final federal disability decision determined the beneficiary is not disabled, evaluate for any other linkage.

If…	Then…
no other linkage exist	discontinue the case and don't refer to DDSD
federal decision was for non-disability reason	refer the case to DDSD

05.04.10G SSA Timely Appeal Filed

When the beneficiary was receiving Medi-Cal based upon disability and is later determined by SSA not to be disabled, follow procedures outlined below.

If the beneficiary…	Then…
is not Medi-Cal eligible under any other linkage factors	request verification that the individual filed an appeal with SSA

filed a timely appeal	continue benefits until a final determination is made
did not file a timely appeal	• evaluate for other linkage • grant if eligible under appropriate aid code • discontinue benefits with timely notice • do not refer to DDSD

When the beneficiary filed a timely appeal of the federal decision and the SSA appeal is still pending:

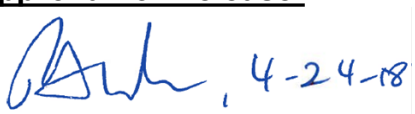
- DDSD will not complete a re-exam on these cases
- DDSD will reset the re-exam date according to the level at which the SSA appeal is pending which may vary from ninety days to two years
- DDSD will advise, “An appeal is pending on a federal Title II/SSI denial/cessation. The case remains under SSA jurisdiction. A revised re-exam date has been set for _____.
- At that time, DDSD will determine whether a medical re-exam is necessary.”

Program Impacts:
None

References:
ACWDLs 09-35, 06-22, 12-02
MEM Proc 22C-9, 22C-9.2A

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operation

Revision Date:
04/01/2018

Background:
State regulations require that disability for Medi-Cal purposes be determined using Title II disability or SSI/SSP criteria. This section is being updated to the new format, no other changes have been made.

Purpose:
This section provides policy on processing Medi-Cal DDSD when there are special situations.

Policy:
05.04.11A Death
DDSD will automatically grant disability status for a person for the month of death. Although disability status is automatic only for the month of death, the State will consider requests for a retroactive onset. If a retroactive onset appears appropriate (i.e. the applicant was hospitalized in the month prior to death), the retro onset box must be checked.

When the request for coverage is for the month of death only, note on MC 221 box 10, “No earlier onset needed”.

If an applicant dies after a DDSD referral has been initiated, notify DDSD of the applicant’s death by telephone and follow up with MC 222. This information will help expedite the determination.

A death certificate expedites processing; the worker will forward a copy when available. If not available, DDSD will either contact the family or will obtain the certificate through government records if one is not provided.

Note: Although death is considered a disability status, **do not** grant Medi-Cal presumptively. The purpose of granting Medi-Cal presumptively is to expedite issuance of a Medi-Cal card so that a patient who meets presumptive criteria can receive medical treatment right away. A deceased person does not fit that situation.

05.04.11B Disabled Children
If the applicant indicates that there is a disabled or potentially disabled child in the home, the applicant will complete form MC 223C and indicate his/her relationship to the child on the form. The DDSD packet will be processed following procedures outline in MPG 05.04.06.

05.04.11C Railroad Retirement Board (RRB) Disability
RRB is the federal agency responsible for administering the retirement system for railroad employees.

RRB evaluates total and permanent disability using Title II SSI/SSP disability criteria. Retired railroad employees who meet the:	
Total and Permanent Disability Criteria	Meet the disability criteria for Medi-Cal
Occupational Disability Criteria	• Cannot perform his/her last railroad job

	• Was not evaluated for capability to perform other past work (including previous railroad jobs). • Does not establish disability for Medi-Cal purposes

05.04.11D RRB Verifications

Request that the applicant submit verifications to identify the type of benefit awarded.

- Award notification or a written statement from RRB, or
- Send a written request to the RRB district office.

If the individual…	Then…
fails or refuses to provide verification without good cause	deny the application for failure to cooperate
states that the award is based on occupational disability but the condition has worsened	submit a DDSD complete referral. See MPG 05.04

Note: When a beneficiary's request for reclassification as a disabled person is denied for failure to cooperate, only the reclassification is affected. Do not discontinue Medi-Cal benefits unless all other linkage ceases or another reason for discontinuance exists.

05.04.11E RRB – Total and Permanent Disability

If RRB benefits were issued on the basis of total and permanent disability, the applicant is disabled for Medi-Cal and will be evaluated for other Medi-Cal eligibility criteria.

Document in the case comments:

1. Disability onset date or date benefits began prior to Medi-Cal effective date.
2. Type of RRB disability award.
3. Date of the RRB notice.

05.04.11F Federal Decisions

Rescind a prior Medi-Cal denial when SSA approves disability after originally denying the claim.

Complete a DDSD referral when the SSA disability onset date does not coincide with the request for Medi-Cal or a retro Medi-Cal is requested. A complete referral packet will be sent to DDSD, including a copy of the SSA award letter.

Notate in item 5 of the MC 221, the Medi-Cal application date to protect applicant's original filing date and specify "originally denied and referred to SSA for reopening" in Item 10 of the MC 221.

Note: Request for retro onset must be made within one year of the month for which retroactive coverage is requested.

05.04.11G DRU vs. Kizer Lawsuit

When DDSD has determined that an applicant is disabled and the applicant becomes a Medi-Cal beneficiary and a subsequent SSA disability denial determination becomes available, do not discontinue Medi-Cal benefits at that time due to the Disabled Rights Union (DRU) lawsuit.

A restraining order was issued in the case of *DRU vs. Kizer* preventing the termination of Medi-Cal for individuals subsequently denied SSA disability benefits. This court order is still in effect.

When the county becomes aware that the beneficiary was denied disability on his/her SSA claim, enter the information into case comments. Do not re-refer the case back to DDSD for a re-exam or re-examination.

Procedures:

N/A

Program Impacts:

None

References:

ACWDL 87-54, 12-02,
MEM Proc 22C

Sunset Date:

This policy will be reviewed for continuance by 04/30/2021

Approval for Release:

4-24-18

Rick Wanne
Eligibility Operations

Receiving and Requesting DDSD Status Information	Number	Page
	05.04.12	1 of 2

Revision Date:
04/01/2018

Background:
The DDSD Quarterly Case Status Reports are used to track and monitor DDSD case actions. Included with the reformatting of this section, the procedures used to process these reports have been removed and placed in Processing Guide 27.

Purpose:
This section describes each report and provides instructions for processing.

Policy:
05.04.12A DDSD Quarterly Reports
The DDSD Quarterly Reports are available in SharePoint. The reports filter the following information and are described in the following sections:

Subject	Description
State Pending	Number of disability applications pending with DDSD
State Closed	Number of disability applications closed with DDSD
CalWIN Pending	Number of DDSD cases pending in CalWIN that are not pending with DDSD
CalWIN Closed	Number of disability applications pending with DDSD that are closed in CalWIN
Decisions Imaged	Number of disability decisions imaged in CERMS
Action Taken	Number of applications with disability decisions received from DDSD and MC Program is approved/denied in CalWIN
Action Pending	Number of applications with disability decisions received from DDSD and MC Program is NOT approved/denied in CalWIN
No Match	Number of applications pending or closed with DDSD that have no MC application in CalWIN to match the application date

05.04.12B Distribution of DDSD Reports
The DDSD Quarterly Case Status Reports are posted in SharePoint on the following months:

- January
- April
- July
- October

05.04.12C State Pending and CalWIN Pending
Cases identified in the State Pending list are cases that DDSD has registered as received in their system and continue pending a decision. This section should match the number of cases pending in CalWIN. The CalWIN Pending section lists all cases pending in CalWIN that are not pending with DDSD.

05.04.12D State Closed and Decisions Imaged
Cases identified in the State Closed list are cases that State DDSD has registered as completed. A decision for these cases should be imaged in the case record. This section should match the number of decisions imaged to CERMS.

05.04.12E CalWIN Closed List
Cases identified in the CalWIN Closed list are cases that are closed in CalWIN yet they continue pending with DDSD.

05.04.12F Actions Pending Report
The Action Pending Report identifies cases pending in CalWIN that have a disability decision capture imaged in CERMS.

05.04.12G No Match
Cases identified in the No Match list are cases that are listed in the State Pending or Closed list that have no Medi-Cal application in CalWIN.

Procedures:
Refer to Processing Guide 27 located in the Eligibility Essentials website for the procedures used to process these reports.

Program Impacts:
None

References:
ACWDL 87-54
MEM Proc 22C

Sunset Date:
This policy will be reviewed for continuance by 04/30/2021

Approval for Release:

4-24-18

Rick Wanne
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